



SPONSOR: Rep. Chukwuocha & Sen. Pinkney & Rep. Morrison &
Rep. Neal
Reps. Griffith, K. Johnson

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 200

AN ACT TO AMEND TITLE 18, TITLE 29, AND TITLE 31 OF THE DELAWARE CODE RELATING TO
INSURANCE COVERAGE FOR TREATMENT TO PREVENT HIV INFECTION.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Chapter 33, Title 18 of the Delaware Code by making deletions as shown by strike through and
insertions as shown by underline as follows:

§ 3370M. Coverage for pre-exposure prophylaxis treatment and post-exposure prophylaxis treatment.

(a) As used in this section:

(1) "Cost-sharing" includes a deductible, coinsurance, copayment, and out-of-pocket expense.

(2) "HIV" means the human immunodeficiency virus.

(3) "Medically necessary" includes prescribing PrEP and PEP to individuals who are at increased risk of HIV
acquisition.

(4) "PEP" means post-exposure prophylaxis for preventing HIV infection after possible HIV exposure.

(5) "PrEP" means pre-exposure prophylaxis for preventing HIV infection before possible HIV exposure.

(b)(1) All individual health insurance policies, contracts, or certificates that are delivered, issued for delivery,
renewed, extended, or modified in this State must provide coverage for medically necessary PrEP and PEP treatment.

(2) The coverage required under paragraph (b)(1) of this section must include services related to administering
the covered treatment.

(3) The coverage required under paragraph (b)(1) of this section must be provided without any of the
following:

a. Cost-sharing requirements.

b. Prior authorization or step therapy requirements.

c. Unreasonable delay in coverage determination.

(c) Except as otherwise provided in subsection (b) of this section, nothing in this section prevents the operation of
a policy provision required by this section as a deductible, coinsurance, allowable charge limitation, coordination of
benefits, or a provision restricting coverage to services by a licensed, certified, or carrier-approved provider or facility.

(d) This section does not apply to accident-only, specified disease, hospital indemnity, Medicare supplement, long-term care, disability income, or other limited health insurance policies.

(e)(1) The cost-sharing limitation under paragraph (b)(3) of this section does not apply to a catastrophic health plan to the extent this cost-sharing limitation would cause the plan to fail to be treated as a catastrophic health plan under § 1302(e) of the Patient Protection and Affordable Care Act, 42 U.S.C. § 18022(e).

(2) The cost-sharing limitation under paragraph (b)(3) of this section does not apply to a high deductible health plan to the extent this cost-sharing limitation would cause the plan to fail to be treated as a high deductible health plan under § 223(c)(2) of the Internal Revenue Code.

(3) If the cost-sharing limitation under paragraph (b)(3) of this section would result in an enrollee becoming ineligible for a health savings account under federal law, the cost-sharing limitation only applies to a qualified high deductible plan after the enrollee's deductible has been met.

Section 2. Amend Chapter 35, Title 18 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 3574EE. Coverage for pre-exposure prophylaxis treatment and post-exposure prophylaxis treatment.

(a) As used in this section:

(1) "Cost-sharing" includes a deductible, coinsurance, copayment, and out-of-pocket expense.

(2) "HIV" means the human immunodeficiency virus.

(3) "Medically necessary" includes prescribing PrEP and PEP to individuals who are at increased risk of HIV acquisition.

(4) "PEP" means post-exposure prophylaxis for preventing HIV infection after possible HIV exposure.

(5) "PrEP" means pre-exposure prophylaxis for preventing HIV infection before possible HIV exposure.

(b)(1) All group and blanket health insurance policies, contracts, or certificates that are delivered, issued for delivery, renewed, extended, or modified in this State must provide coverage for medically necessary PrEP and PEP treatment.

(2) The coverage required under paragraph (b)(1) of this section must include services related to administering the covered treatment.

(3) The coverage required under paragraph (b)(1) of this section must be provided without any of the following:

a. Cost-sharing requirements.

b. Prior authorization or step therapy requirements.

53 c. Unreasonable delay in coverage determination.

54 (c) Except as otherwise provided in subsection (b) of this section, nothing in this section prevents the operation of
55 a policy provision required by this section as a deductible, coinsurance, allowable charge limitation, coordination of
56 benefits, or a provision restricting coverage to services by a licensed, certified, or carrier-approved provider or facility.

57 (d) This section does not apply to accident-only, specified disease, hospital indemnity, Medicare supplement, long-
58 term care, disability income, or other limited health insurance policies.

59 (e)(1) The cost-sharing limitation under paragraph (b)(3) of this section does not apply to a high deductible health
60 plan to the extent this cost-sharing limitation would cause the plan to fail to be treated as a high deductible health plan
61 under § 223(c)(2) of the Internal Revenue Code.

62 (2) If the cost-sharing limitation under paragraph (b)(3) of this section would result in an enrollee becoming
63 ineligible for a health savings account under federal law, the cost-sharing limitation only applies to a qualified high
64 deductible plan after the enrollee's deductible has been met.

65 Section 3. Amend Chapter 52, Title 29 of the Delaware Code by making deletions as shown by strike through and
66 insertions as shown by underline as follows:

67 § 5223. Coverage for pre-exposure prophylaxis treatment and post-exposure prophylaxis treatment.

68 (a) As used in this section:

69 (1) "Cost-sharing" includes a deductible, coinsurance, copayment, and out-of-pocket expense.

70 (2) "HIV" means the human immunodeficiency virus.

71 (3) "Medically necessary" includes prescribing PrEP and PEP to individuals who are at increased risk of HIV
72 acquisition.

73 (4) "PEP" means post-exposure prophylaxis for preventing HIV infection after possible HIV exposure.

74 (5) "PrEP" means pre-exposure prophylaxis for preventing HIV infection before possible HIV exposure.

75 (b)(1) The plan must provide coverage for medically necessary PrEP and PEP treatment.

76 (2) The coverage required under paragraph (b)(1) of this section must include services related to administering
77 the covered treatment.

78 (3) The coverage required under paragraph (b)(1) of this section must be provided without any of the
79 following:

80 a. Cost-sharing requirements.

81 b. Prior authorization or step therapy requirements.

82 c. Unreasonable delay in coverage determination.

Section 4. Amend Chapter 5, Title 31 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows:

§ 538. Coverage for pre-exposure prophylaxis treatment and post-exposure prophylaxis treatment.

(a) As used in this section:

(1) "Cost-sharing" includes a deductible, coinsurance, copayment, and out-of-pocket expense.

(2) "HIV" means the human immunodeficiency virus.

(3) "Medically necessary" includes prescribing PrEP and PEP to individuals who are at increased risk of HIV acquisition.

(4) "PEP" means post-exposure prophylaxis for preventing HIV infection after possible HIV exposure.

(5) "PrEP" means pre-exposure prophylaxis for preventing HIV infection before possible HIV exposure.

(b)(1) Carriers shall provide coverage for medically necessary PrEP and PEP treatment.

(2) The coverage required under paragraph (b)(1) of this section must include services related to administering the covered treatment.

(3) To the extent permitted by federal law, the coverage required under paragraph (b)(1) of this section must be provided without any of the following:

a. Cost-sharing requirements.

b. Prior authorization or step therapy requirements.

c. Unreasonable delay in coverage determination.

Section 5. This Act applies to all policies, contracts, or certificates that are renewed, modified, altered, amended, or reissued after December 31, 2026.

SYNOPSIS

This Act requires individual health insurance plans, group and blanket health insurance plans, the State employee health plan, and State Medicaid insurance to cover medically necessary pre-exposure prophylaxis ("PrEP") treatment for the prevention of human immunodeficiency virus ("HIV") infection before possible HIV exposure and post-exposure prophylaxis ("PEP") treatment for the prevention of HIV infection after possible HIV exposure.

The required PrEP and PEP coverage must include services related to administering the covered treatment and must be provided without any of the following:

1. Cost-sharing requirements, including deductibles, coinsurance, copayments, and out-of-pocket expenses.
2. Prior authorization or step therapy requirements.
3. Unreasonable delay in coverage determination.

This Act applies to all policies, contracts, or certificates that are renewed, modified, altered, amended, or reissued after December 31, 2026.